

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed: _____, 2020

INDEX NO.

ANUJ SINHA,

Plaintiff,

Plaintiff designates County
as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY
POLICE DEPARTMENT ("Sgt.") BIANCANELLI,

The basis of venue is
Plaintiff's residence:
51-32 48th Street

Defendants.

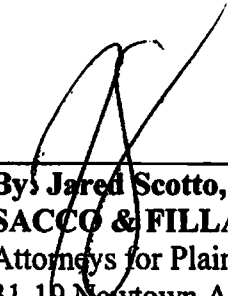
Woodside, NY 11377

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
February 23, 2020


By: **Jared Scotto, Esq.**
SACCO & FILLAS, LLP
Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File # 23176-19

TO:

DEFENDANTS:

THE CITY OF NEW YORK

One Centre Street

New York, NY 10007

NEW YORK POLICE DEPARTMENT

One Centre Street

New York, NY 10007

P.O. KWAME AGYEI

One Centre Street

New York, NY 10007

SERGEANT BIANCANELLI

One Centre Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANUJ SINHA,

INDEX NO.

Plaintiff,

-against-

VERIFIED COMPLAINTTHE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY
POLICE DEPARTMENT ("Sgt.") BIANCANELLI,

Defendants.

Plaintiff, ANUJ SINHA, by his attorneys, SACCO & FILLAS, LLP, as and for his
Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, Anuj Sinha, at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, defendant NEW YORK POLICE DEPARTMENT, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. At all times herein mentioned, defendant, THE CITY OF NEW YORK, maintains the NEW YORK POLICE DEPARTMENT, a duly organized public authority and/or police department, authorized to perform law enforcement and all functions of a police department under the New York State Criminal Procedure Law and acting under the direction and supervision of defendant, THE CITY OF NEW YORK.
5. At all times herein mentioned, defendant, THE CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT assumed the risks incidental to the maintenance of a police force, to the employment of police officers, and to the public consumers of the

services provided by the NEW YORK POLICE DEPARTMENT.

6. At all times herein mentioned, defendants, P.O. KWAME AGYEI and Sgt. BIANCANELLI, were duly sworn police officers of the New York City Police Department, acting under the direction and supervision of the New York City Police Department and/or THE CITY OF NEW YORK and according to their official duties.
7. At all times herein mentioned, defendants, The City Of New York, New York Police Department, New York City Police Department Officer ("P.O.") Kwame Agyei, And New York City Police Department ("Sgt.") Biancanelli, acted under color of state law, with the power and authority vested in them as police officers and incidental to the lawful pursuit of their duties as such, and are sued herein in their individual and official capacities.
8. On or about October 4, 2019, in accordance with the General Municipal Law and/or applicable law, a Notice of Claim was served upon defendant, THE CITY OF NEW YORK.
9. Such Notice of Claim was served within 90 days after the causes of action herein occurred, in accordance with the General Municipal Law and/or applicable law.
10. The aforementioned Notices of Claim, sworn to by the claimant, set forth the name and post office address of the claimant and his attorney, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of injury so far as practical; at least 30 days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused.
11. On or about December 27, 2019, plaintiff, ANUJ SINHA, appeared for an oral examination conducted on behalf of defendants by City of New York, Colon & Peguero LLP, 575 Eighth Avenue, Suite 1808, New York, New York 10018.
12. This action has been commenced within one year and ninety days from the date of the happening of the incident(s) complained of herein.

13. The causes of action herein arose in the County of Queens, State of New York.

14. FACTUAL BACKGROUND

15. On or about July 7, 2019, plaintiff was forcibly removed against his will and without his consent and arrested by defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, acting as employees, agents, servants, representatives, and/or officers of the CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT.
16. On or about July 7, 2019, plaintiff was thereafter transported against his will and without his consent to the 108th Precinct of the CITY OF NEW YROK and/or NEW YORK POLICE DEPARTMENT where he was searched, detained, and deprived of his liberty.
17. On or about July 7, 2019, defendant, NEW YORK POLICE DEPARTMENT, completed and/or caused to be completed an appearance ticket bearing arrest-id Q19625468 and DAT serial number 108-12967 18-32490, and alleging the crime of violating PL 120.00 02 and violating PL 240.26.01
18. At all times herein mentioned, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
19. At all times herein mentioned, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, had no warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason to stop and/or arrest the plaintiff.
20. At all times herein mentioned, defendants, NEW YORK CITY POLICE DEPARTMENT

OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, intentionally placed the plaintiff under arrest without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

21. A reasonable person or police officer should have known that plaintiff had committed no crime.
22. At all times herein mentioned, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, had actual knowledge that plaintiff had committed no crime and acted with intentional, malicious, careless, reckless, and/or grossly negligent disregard for the truth in falsely accusing the plaintiff of crimes under the New York State Penal Law.
23. On or about September 23, 2019, all charges against the plaintiff were dismissed and he was released from custody.
24. As a direct and proximate result of the aforesaid acts of defendants, the plaintiff sustained painful, permanent, serious, severe, and physically and emotionally disabling injuries to diverse parts of his body and limbs, causing pain and suffering and severe emotional trauma, requiring extensive medical care and treatment, incurring expenses on legal representation, disabling him from his usual and customary activities, preventing him from enjoying his normal station in life, and causing him to become sick, sore, lame, and disabled.
25. As a direct and proximate result of the aforesaid acts of defendants, the plaintiff was compelled to and did necessarily require extensive medical care and treatment and did necessarily pay and become liable.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
DEPRIVATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §1983**

26. Plaintiff repeats and realleges each and every allegation contained in paragraphs

“1” through “24” with the same force as if alleged in full herein.

27. Defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER(“P.O.”) KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT (“Sgt.”) BIANCANELLI, under color of law, subjected the plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. §1983, thereby depriving plaintiff of his rights, privileges, and immunities secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.
28. Plaintiff was deprived of his right to be free from the unreasonable seizure of his person.
29. Plaintiff was deprived of his right to be free from arrest without probable cause.
30. Plaintiff was deprived of his right to be free from false imprisonment and detention without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.
31. Plaintiff was deprived of his right to be free from the lodging of false charges against him.
32. Plaintiff was deprived of his right to be free from having evidence against him fabricated.
33. Plaintiff was deprived of his right to be free from malicious prosecution without probable cause instituted with malice and ultimately resulting in a termination in plaintiff's favor.
34. Plaintiff was deprived of his right to be free from abuse of process.
35. Plaintiff was deprived of his right to be free from deprivation of liberty without due process of law.
36. Plaintiff was deprived of his right to equal protection, privileges, and immunities under the law.

37. Plaintiff was aware of the foregoing rights and did not consent to the deprivation of same.
38. The acts and/or omissions described herein were carried out by defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI in furtherance of and within the course and scope of their duties and functions as employees, agents, servants, representatives, and/or officers of the CITY OF NEW YROK and/or NEW YORK POLICE DEPARTMENT and with the actual and/or apparent authority attendant thereto.
39. The acts and/or omissions described herein were carried out by defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, pursuant to the customs, usages, practices, procedures, and/or rules of the CITY OF NEW YROK and/or NEW YORK POLICE DEPARTMENT, all under the supervision of ranking officers of said police department.
40. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
41. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.
42. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST

43. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "42" with the same force as if alleged in full herein.
44. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI falsely and intentionally arrested the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.
45. The arrest of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.
46. The plaintiff was aware of his arrest and confinement as described herein, he did not consent to his arrest and confinement, and his arrest and confinement was not privileged by any law or authority.
47. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
48. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
49. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.
50. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the

jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT**

51. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "50" with the same force as if alleged in full herein.
52. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, falsely and intentionally imprisoned the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.
53. The imprisonment of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.
54. The plaintiff was aware of his imprisonment as described herein, he did not consent to his imprisonment, and his imprisonment was not privileged by any law or authority.
55. By the acts and/or omissions described herein, defendants, GAMBLE, BAIA, and PAULSON, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
56. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
57. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

58. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
ASSAULT**

59. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "58" with the same force as if alleged in full herein.

60. The physical conduct of defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, which was intentional, placed plaintiff in reasonable fear, alarm, and imminent apprehension of harmful, offensive, and nonconsensual bodily contact.

61. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

62. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

63. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
BATTERY**

64. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "63" with the same force as if alleged in full herein.

65. The of defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.")

KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.")

BIANCANELLI, which was intentional, resulted in harmful, offensive, and nonconsensual bodily contact with the plaintiff.

66. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
67. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.
68. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
ABUSE OF PROCESS**

69. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "68" with the same force as if alleged in full herein.
70. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, employed regularly issued criminal process against plaintiff compelling the performance or forbearance of prescribed acts.
71. The purpose of activating this process was with malice and/or the intent to harm the plaintiff, without any excuse or justification.
72. The defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, misused the criminal process in a perverted manner for the purpose of

obtaining a collateral objective or corresponding detriment to the plaintiff which was outside the legitimate ends of the process.

73. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

75. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

76. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

77. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "76" with the same force as if alleged in full herein.

78. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI without probable cause for arrest or prosecution, directly, actively, and maliciously caused a criminal proceeding to be initiated and continued against plaintiff for the purpose of harming and/or punishing the plaintiff for illegitimate reasons.

79. The plaintiff was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT.
80. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject the plaintiff to a possible term of imprisonment.
81. The criminal proceeding ultimately resulted in a termination in plaintiff's favor.
82. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
83. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
84. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.
85. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

86. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "85" with the same force as if alleged in full herein.

87. Defendants NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, had a duty to protect and to refrain from depriving the plaintiff of his Constitutional rights, falsely arresting the plaintiff, falsely imprisoning the plaintiff, abusing the criminal law process, maliciously prosecuting the plaintiff, and otherwise violating the plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
88. By the acts and/or omissions described herein, defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, breached their duty to the plaintiff, unreasonably endangering the physical safety of the plaintiff and causing the plaintiff to fear for his physical safety.
89. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
90. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

91. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "90" with the same force as if alleged in full herein.
92. The acts and/or omissions described herein were so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

93. Defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, acted with intent to cause and/or disregard of a substantial probability of causing severe emotional distress to plaintiff.
94. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
95. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.
- AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION**
96. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "95" with the same force as if alleged in full herein.
97. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, hired, trained, supervised, and retained defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, despite their known and foreseeable propensity for the injury-causing and tortious conduct alleged herein.
98. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, failed to exercise reasonable care in hiring defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI.
99. Defendant, CITY OF NEW YOEEK and/or NEW YORK POLICE DEPARTMENT, failed to exercise reasonable care in training defendants, NEW YORK CITY POLICE

DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI.

100. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, failed to exercise reasonable care in supervising defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI Defendant.
101. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, knew of the defendants', NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, propensity for the injury-causing and tortious conduct alleged herein.
102. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, should have known of the propensity of defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, for the injury-causing and tortious conduct alleged herein had the defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, conducted an adequate hiring, training, supervision, and retention procedure.
103. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, failed to investigate defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, despite knowledge of facts that would lead a reasonably prudent person to investigate these defendants.
104. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, failed to take corrective action against defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE

DEPARTMENT ("Sgt.") BIANCANELLI, despite knowledge of facts that would lead a reasonably prudent person to take corrective action against these defendants.

105. Defendant, CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, failed to reasonably control or monitor defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, despite knowledge of facts that would lead a reasonably prudent person to control or monitor these defendants.
106. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
107. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR / VICARIOUS LIABILITY**

108. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "108" with the same force as if alleged in full herein.
109. Defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, acted in furtherance of and within the course and scope of their duties and functions as employees, agents, servants, representatives, and/or officers of the CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful functions as police officers.

110. Defendants NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, acted in furtherance of their employment with the CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT.
111. Defendants, NEW YORK CITY POLICE DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT ("Sgt.") BIANCANELLI, acted pursuant to the customs, usages, practices, procedures, and/or rules of the CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT, all under the supervision of ranking officers of said police department.
112. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
113. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

WHEREFORE, the plaintiff ANUJ SINHA demands:

- A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

G. Judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

H. Judgment awarding damages on the eighth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

I. Judgment awarding damages on the ninth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

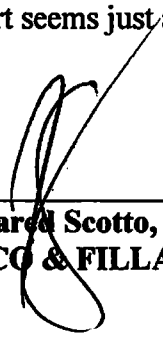
J. Judgment awarding damages on the tenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

K. Judgment awarding damages on the eleventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

L. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, NY
February 25, 2020


By: Jared Scotto, Esq.
SACCO & FILLAS, LLP

Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File # 23176-19

TO:

THE CITY OF NEW YORK

One Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT

One Centre Street
New York, NY 10007

P.O. KWAME AGYEI

One Centre Street
New York, NY 10007

SERGEANT BIANCANELLI

One Centre Street
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

ANUJ SINHA,

INDEX NO.

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

**THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY
POLICE DEPARTMENT ("Serg.") BIANCANELLI,**

Defendants.

**Jared Scotto, Esq., an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:**

I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

**I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.**

**This verification is made by affirmant and not by plaintiff because she is not in the
County of Queens, which is the County where your affirmant maintains offices.**

**The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.**

**Dated: Queens, New York
February 25, 2020**

Jared Scotto, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.

ANUJ SINHA,

Plaintiff,

-against-

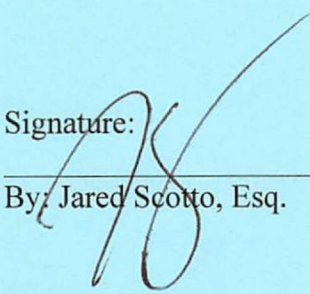
THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY
POLICE DEPARTMENT ("Serg.") BIANCANELLI,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Queens, NY
February 25, 2020

Signature: 

By: Jared Scotto, Esq.

SACCO & FILLAS, LLP

Attorneys for Plaintiff

Anuj Sinha

31-19 Newtown Avenue - Seventh Floor

Astoria, New York 11102

(718) 746-3440

Our File # 23176-19

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ANUJ SINHA,

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, NEW YORK CITY POLICE
DEPARTMENT OFFICER("P.O.") KWAME AGYEI, and NEW YORK CITY POLICE DEPARTMENT
("Serg.") BIANCANELLI,

Defendants.

-----X

**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that they lack the computer equipment and (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: February 25, 2020

Jared Scotto, Esq.

Sacco & Fillas LLP
3119 Newtown Avenue
7th Floor
Astoria, NY 11102
(718) 746-3440
Jscotto@saccofillas.com

TO:

THE CITY OF NEW YORK

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New York, NY 10007

NEW YORK POLICE DEPARTMENT

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